NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CA (CAA) /06/GB/2021

Coram:
Hon'ble Shri H. V. Subba Rao, Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 06.08.2021

Name of the Company:	Regional Director, NER, Guwahati V/s Moondhara Traders Pvt. Ltd. & Others
Section of the Companies Act:	Under Section 230 & 232(5) of Companies Act, 2013

S. NO. NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1. NONE	-	Petitioner	Present in Video
2. NONE	-	Respondents	Conference

O R D E R
Date of Order: 06.08.2021

The matter is taken up for hearing through Video Conferencing. No one is present from the side of either of the parties.

2. Hence, it is required to reproduce the earlier order passed by this Bench on 22.03.2021 and 21.06.2021 herein below:

Order dated 22.03.2021:

The matter is taken up for hearing through Video Conferencing. Heard Mohd. Shakeel, Deputy Director appearing for the Petitioner and the Learned Counsel Mr. B. Sharma appearing for the Respondents. Earlier, the RD had submitted that the Transferee Company Wonderland Barter Pvt. Ltd. has failed to disclose the gross turnover of the business. Subsequently, the Transferee Company has filed its submission on 09.03.2021 clarifying the position of turnover quoting the Guidance Note on Tax Audit under Section

44AB of the Income Tax Act, 1961.Mohd. Shakeel, the Deputy Director, NER submits that the Respondent Company is a small Company and the matter should not come to the Regional Director. The Regional Director is directed to file his submission within 15 (fifteen) days from today in this regard serving copy thereof to the Respondents. It is also observed that no Amalgamation Petition has been filed before this Bench by the Applicants.

Order dated 21.06.2021:

"The matter is taken up for hearing through Video Conferencing. Neither the Petitioner nor his Counsel is present today. Learned Counsel for the Respondents Mr. Bikash Sharma is present and he submits that it had clarified the Second Point raised by the Petitioner as directed earlier by this Hon'ble Bench. Since the Petitioner has not filed any submission, after the receipt of the reply from the Respondent, the matter is adjourned. The Registry is directed to send the copy of Today's Order to the Petitioner immediately, through mail followed by the post for filing of its reply, if any, within ten days from the date of receipt of the Order".

3. The Petitioner was not present on 21.06.2021 and today also. The Respondent Company has clarified the points raised by the Petitioner. The Petitioner has reported that the Respondent Company is a small company. Hence, the matter should not come to the Regional Director. Considering the replies of both the Petitioner and the Respondent, the matter is closed.

4. Hence, this Petition is disposed of in the absence of any further pleas/objections from the Petitioner.

Sd/-
(**Prasanta Kumar Mohanty)**
Member (Technical)

Sd/-
(H. V. Subba Rao)
Member (Judicial)

/Deka-06.08.2021//